

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

CV 07 1948

GARVIN WILSON,

X

Plaintiff,

-against-

COMPLAINT

PLAINTIFF
DEMANDS
TRIAL BY JURY

THE CITY OF NEW YORK,
WALIUR RAHMAN, Shield #6428,

Defendants,

AMON, J.

GOLD, M.J.

X

PLAINTIFF GARVIN WILSON by his attorney DAVID A. ZELMAN, Esq., for his
COMPLAINT, alleges upon information and belief, as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which PLAINTIFF GARVIN WILSON (hereinafter "WILSON") seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution. On or about May 16, 2006, at or near 563 Lincoln Place, Brooklyn, New York WILSON was falsely arrested by New York City Detective WALIUR RAHMAN (hereinafter "RAHMAN"). It is alleged that the CITY OF NEW YORK and RAHMAN falsely arrested WILSON in violation of his constitutional rights, and as a result WILSON was detained for approximately 27 hours. During the arrest, WILSON was strip searched. As a

result of the incident, WILSON suffered loss of enjoyment of life, mental anguish, shame, humiliation, indignity, and damage to reputation, economic damages, among other damages. Plaintiff appends state and federal law claims.

II. JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. §1343 (3) and (4), which provides for original jurisdiction in this court of all suits brought pursuant to 42 U.S.C. §1983, and by 28 U.S.C. §1331, which provides jurisdiction over all cases brought pursuant to the Constitution and laws of the United States. This Court has pendant jurisdiction over PLAINTIFF's state law claims.

III. PARTIES

3. WILSON at all times resided at 552 Lincoln Place, Apt. L. Brooklyn, NY, 11235.
4. Defendant CITY is the municipal corporation that operates the New York City Police Department.
5. P.O. RAHMAN is and was a Police Officer employed by defendant City of NEW YORK acting within the scope of his duties as a police officer.
6. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of the New York City Police Department, and was acting under the color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

IV. FACTS

7. On or about May 16, 2006, WILSON was walking on Lincoln Place at its intersection with Franklin Avenue in Brooklyn. At approximately 7:30 P.M. WILSON was returning home from a grocery store when he spotted his friend.
8. WILSON noticed his friend speaking to a plain clothed man whom he did not recognize.
9. WILSON said "hello" to his friend but received no reply. Upon saying "hello" a second time, the plain clothed man pulled out his badge and displayed it to WILSON.
12. The plain clothed police officer, later identified as P.O. RAHMAN, arrested WILSON.
13. WILSON was charged with PL 195.05 Obstructing Governmental Administration In The Second Degree and PL 221.05 Unlawful Possession of Marihuana.
14. WILSON was detained for approximately 27 hours.
15. While in custody, WILSON was strip searched.
16. On May 17, 2006, WILSON received adjournment in contemplation of dismissal and released.
17. WILSON suffered considerable economic damages as a direct result of his excessive detention and imprisonment.
18. WILSON suffered greatly and was emotionally traumatized by this excessive detention and imprisonment.
19. WILSON suffered damage to his reputation.

20. WILSON suffered a loss of liberty as a result of this unnecessary and excessive detention.
21. That heretofore and on the 23rd day of June, 2006, WILSON's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of WILSON, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.
22. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

V. FIRST CAUSE OF ACTION
Pursuant to §1983 (FALSE ARREST)

23. Paragraphs 1 through 22 of this complaint are hereby realleged and incorporated by reference herein.
24. That Defendants had no valid evidence for the arrest of WILSON, nor legal cause or excuse to seize and detain WILSON for a period of approximately 27 hours.
25. That in detaining WILSON for a period of 27 hours without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.

26. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
27. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
28. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of WILSON's rights alleged herein.
29. By reason of Defendant's acts and omissions, Defendant, acting under color of state law and within the scope of its authority, in gross and wanton disregard of WILSON's rights, subjected WILSON to an unlawful, illegal and excessive detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
30. By reason of the foregoing, WILSON suffered mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VI. SECOND CAUSE OF ACTION
Pursuant to State Law (FALSE ARREST)

31. Paragraphs 1 through 30 are hereby realleged and incorporated by reference herein.

32. That the seizure, detention and imprisonment of WILSON was unlawful in that Defendants had no probable cause to detain, arrest and/or imprison WILSON.
33. That defendants intended to confine WILSON.
34. That WILSON was conscious of the confinement and did not consent to the confinement.
35. That the confinement was not otherwise privileged.
36. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of WILSON' rights, deprived WILSON of his liberty when they subjected WILSON to an unlawful, illegal and excessive detention, in violation of State law.
37. That by reason of the foregoing, WILSON suffered mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VII. THIRD CAUSE OF ACTION
Pursuant to §1983 (ILLEGAL STRIP SEARCH)

38. Paragraphs 1 through 37 are hereby realleged and incorporated by reference herein.
39. That defendants strip searched WILSON absent a requisite reasonable suspicion that WILSON were concealing weapons and / or contraband.
40. That defendants had no legally sufficient cause to strip search WILSON.
41. That by reason of defendants' acts and omissions, defendants acting under color of State law and within the scope of their authority, in gross and wanton disregard of WILSON's rights, subjected WILSON to an illegal strip search, in violation of their

rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

VIII. FOURTH CAUSE OF ACTION
Pursuant to State Law (ILLEGAL STRIP SEARCH)

42. Paragraphs 1 through 41 are hereby realleged and incorporated by reference herein.
43. That defendants strip searched WILSON absent a requisite reasonable suspicion that WILSON was concealing weapons and / or contraband.
44. That defendants had no legally sufficient cause to strip search WILSON.
45. That by reason of defendants' acts and omissions, defendants acting under color of State law and within the scope of their authority, in gross and wanton disregard of WILSON's rights, subjected WILSON to an illegal strip search, in violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

INJURY AND DAMAGES

As a result of the acts and conduct complained of herein, WILSON has suffered and will continue to suffer emotional pain, suffering, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses.

Plaintiff has further experienced severe emotional and physical distress.

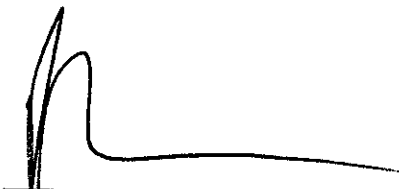
WHEREFORE, WILSON respectfully requests that judgment be entered:

1. Awarding WILSON compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding WILSON punitive damages in an amount to be determined by a

jury;

3. Awarding WILSON interest from May 16, 2006; and
4. Awarding WILSON reasonable attorney's fees pursuant to 42 USC §1988;
and
5. Granting such other and further relief as to this Court seems proper.

DATED: Brooklyn, New York
May 9, 2007



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